

MEMORANDUM TO THE FILE

**Subj: JUSTIFICATION FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED
ACQUISITION THRESHOLD**

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Procurement is for psychological assessment testing and resources. Since 2019 Marine Corps Recruit Depot San Diego (MCRDSD) has established a Psychological Assessment and Selection (A&S) program to screen Drill Instructor (DI) students and Series Commanders prior to conducting recruit training. To properly conduct A&S, a battery of intelligence and personality tests will be administered to each incoming student, Series Commander, or as deemed operationally appropriate for permanent personnel. Per American Psychological Association Ethical Principles of Psychologists and Code of Conduct and nationally recognized standards, only qualified individuals may administer, interpret, or apply psychological testing.

The selection of the PAI personality test is based on the tests ability to accurately identify a number of personality traits which might be associated with high-risk behavior, decision making skills, clinical psychological pathology (i.e. impulsivity, aggression, mood disorders etc.). These are the key attributes at question in assessing the DI/Series Commander population which could, under high stress, exhibit maladaptive behavior as a response to their job environment. For that reason, we aim to screen for such attributes prior to assignment in a role that could put the Marine or recruit at risk. An individual can complete the PAI in less than 90 minutes, producing rich data that informs suitability/fitness for duty determinations.

The NEO-PI-3 is a personality test that generates a profile of an individual's interpersonal strengths and weaknesses using five major factors- openness, neuroticism, extraversion, conscientiousness, and agreeableness. It is the only test of its kind and is an integral part of the screening, monitoring, and continual executive coaching program that will be offered to DI's and Series Commanders annually. It is considered the best of its kind in the industry and is widely used by Psychologists across the DoD and federal government.

Procurement consists of Psychological Assessment Resources (PAR), Inc. online administered testing and corresponding interpretive reports for each individual tested. Procurement includes:

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Justification for Other than Full and Open Competition – FAR Part 13 Acquisitions under the SAT

(25) each Personality Assessment Inventory iAdmin, Item #10415-IC; online administration tokens for evaluating an individual's personality profile and psychopathology

(320) each - PAI Interpretive Report, Item #10417-II; automatically generated results report that interprets and individual's scores against societal norms.

(320) each NEO-PI-3 Internet Admin, Item #10420-IC; online administration tokens for evaluating an individual's personality strengths/weaknesses

(320) each NEO-PI-3 Interpretive Report, Item #10422-II; automatically generated results report that explains an individual's strengths/weaknesses

Independent government estimate for this requirement is \$16,625.70.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. X *ONLY ONE RESPONSIBLE SOURCE* *(select all that apply)*:

1. X RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

PAR, Inc. is the publisher of both tests and full interpretive reports. Because these psychological tests are protected by copyrights and restricted to users who are technically proficient and have the educational qualifications to use them, they are not available to the public or widely distributed. PAR, Inc. retains their proprietary rights. Furthermore, PAR, Inc. provided a letter on 04/29/2025 stating "This letter aims to verify that Psychological Assessment Resources Inc. (PAR, Inc.) is the publisher and Sole Source for the following products."

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS.

B. X *BRAND NAME*

Item required must be a brand name, product, or feature of a product, particular to one manufacturer. The requested tests are in use around the DoD for similar psychological assessment and selection programs that determine job placement and suitability. They are personality instruments which have been scientifically validated against rigorous research and are protected for use by qualified clinicians; other internet-based personality measures are not equivalent and typically do not meet the professional standard for use in a clinical or operational setting. This procurement is to continue the same testing methods and procedures for consistent reporting. These products were previously ordered under contract M0068124P0029.

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C. **URGENT AND COMPELLING.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. **Technical / Requirements Certification:** I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

_____ Signature	_____ Name (Printed) / Phone #	<u>4/29/2025</u> Date
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B. **Contracting Officer Certification:** I certify that this justification is accurate and complete to the best of my knowledge and belief.

_____ Signature	Nina A. Kanoa, 760-763-6860 Name (Printed) / Phone #	5/1/25 Date
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